

Ram Sagar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 September 2014 · Writ-C No. 43926 of 2014 · **Writ disposed; Executive Engineer to decide pending representation under clause 6.5; coercive steps stayed two months.**

HEADNOTE

Writ challenging a recovery certificate issued without assessment after a 2007 electricity disconnection is disposed of by directing the Executive Engineer, as the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, to consider the pending representation and decide it by a reasoned speaking order in accordance with law within six weeks; coercive action stayed for two months or until that decision, whichever is earlier.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected in 2007. Thereafter, without any assessment, a recovery certificate was issued and his property was attached. He challenged the recovery in writ, stating that a representation against it was pending. Counsel for the distribution licensee was given successive adjournments to obtain instructions. A letter of the Tehsildar, Sadar, Basti, produced in Court, recorded that the attached property had not yet been sold. Counsel for respondent no. 4 submitted that the Executive Engineer was competent under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery without assessment after disconnection

HOLDING

Where the consumer's grievance is that a recovery certificate was issued without assessment after disconnection in 2007, the Executive Engineer is the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ is disposed of with a direction to consider and decide the representation by a reasoned speaking order in accordance with law within six weeks, coercive action remaining stayed for two months or until that decision, whichever is earlier.

¶ 17.9.2014

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RECOVERY ISSUED WITHOUT ASSESSMENT AFTER THE 2007 DISCONNECTION WAS LAWFUL

left to the Executive Engineer under clause 6.5 ¶ 17.9.2014